

25NNCV07248 25NNCV07248

County: los-angeles

Division: Civil Law and Motion

Department: A

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Case Number: 25NNCV07248 Hearing Date: September 11, 2026 Dept: A

TENTATIVE RULING

SEPTEMBER 11, 2026

(CONTINUED FROM AUGUST 14, 2026)

MOTION TO QUASH SERVICE

Los

Angeles Superior Court Case # 25NNCV07248

MP: Defendant Purrfect Mechanical Services,
Inc.

RP: Plaintiff Emeka V. Peter

ALLEGATIONS:

Emeka V. Peter ("Plaintiff")

alleges that on December 9, 2024, he took his car to Purrfect Mechanical Services, Inc. ("Defendant") and provided his own part for repair. Plaintiff alleges Defendant charged Plaintiff \$200 for the repair and took possession of his vehicle to fix the master brake system. Although the repair was supposed to be completed the same day, Defendant falsely informed Plaintiff that the repair would not be finished because the person responsible for bleeding the brake system was unavailable. After five days, Plaintiff returned, paid Defendant \$100, and noticed

that the repair had not been completed and that there was a crack in his windshield. Upon return, Defendant refused to perform the windshield replacement or repair the coding system unless Plaintiff paid the remaining \$100 balance. Plaintiff alleges Defendant's conduct, his windshield, the brake system, and coding system were left in a damaged and unsafe condition, depriving him of the use of his vehicle.

The

Complaint, filed October 14, 2025, alleges: (1) Negligence; (2) Breach of Contract; (3) Breach of Warranty; (4) Property Damage; and (5) Loss of Use.

MOTION

ON CALENDAR:

On

May 1, 2026, Defendant filed a Motion to Quash Service of the Complaint. On May 27, 2026, Plaintiff (a self-represented litigant) filed an opposition. On July 24, 2026, Defendant filed a reply. On July 30, 2026, Plaintiff filed a Notice of Errata regarding Ada Peter's declaration.

The

matter initially came for hearing on August 14, 2026. Plaintiff requested, and the Court granted, an Evidentiary Hearing (Evidence Code, § 402) for September 11, 2026 at 1:45 p.m.

LEGAL

STANDARD:

C.C.P. § 418.10(a)(1) states: "A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion" to "quash service of summons on the ground of lack of jurisdiction of the court over him or her."

C.C.P. § 415.10 states in relevant part:

A summons may be served by personal delivery of a copy of the summons and of the complaint to the person to be served. Service of a summons in this manner is deemed complete at the time of

such delivery.

(C.C.P. § 415.10.)

REQUEST

FOR JUDICIAL NOTICE:

With

the motion, Defendant requests judicial notice of Exhibits: (A) the Proof of Service of Hayk Mirimanyan dated October 13, 2025 in this action; (B) Proof of Service in Case No. 25VECV07298 on Hayk Mirimanyan dated October 22, 2025; and (C) Proof of Service in Case No. 25VECV07398 on Hayk Mirimanyan dated April 8, 2026. The request is granted. (Evid. Code, § 452(d).)

ANALYSIS:

A. Proof of Service

On December 22, 2025, Plaintiff filed the Proof of Service of Summons, indicating that Defendant was personally served on October 22, 2025 at 4:30 by serving Hayk Mirimanyan at 4350 Whitsett Avenue, Studio City, CA 91604. Service was effectuated by Ada Peter, who is not a registered California process server.

B. Discussion

Defendant

moves to quash service of the summons and complaint.

In

support of the motion, Defendant provides Hayk Mirimanyan's declaration. Mr. Mirimanyan states that he has been Defendant's agent since 2017 and is the principal officer. (Mirimanyan Decl., ¶4.) He believes that on the dates he was supposed to be in the shop and personally served with the legal papers, he was either in his home office or with business associates. (Id., ¶6.) He states that on October 22, 2025, he was never at the business location at 4350 Whitsett Avenue and has never been served by any means with the summons and complaint in this action. (Id.,

¶7.) He states he first became aware of the legal documents on April 8, 2026, when his manager Andy Kepenyan told him about the lawsuit; he then saw the documents on April 28, 2026 when he met with his attorney Donald M. Shirwo. (Id.,

¶9.) He states that he spoke with his employees at the business location and no one received the summons and complaint documents. (Id., ¶10.)

Mr.

Kepenyan provides his declaration, stating that he is Defendant's manager and regularly at the business location daily from 8:00 a.m. to 6:00 p.m. except Saturday and Monday. (Kepenyan Decl.,

¶¶3-4.) He states that he was at the business address on October 22, 2025 and that for all business hours of that day, Mr. Mirimanyan was not present at any time and he normally was not present at the location unless there was an emergency or something unusual. (Id., ¶5.) On "April 8, 2026," Mr. Kepenyan states he was at the business location all day and that later in the afternoon, a woman parked her car in the driveway, walked up to the counter, and dropped a sealed envelope and left the business. (Id.,

¶6.) He states he opened the sealed envelope and inside was the Case management Statement, and that he called Mr. Mirimanyan about the paperwork. (Id.,

¶7.) When he was subsequently shown the legal documents by Mr. Shirwo, he states that no one delivered those documents to the business on October 13 or 22, 2025 and that the woman who dropped the sealed envelope on "April 7, 2026" was never on the business premises on October 13 or 22, 2025. (Id.,

¶8.) (The Court notes that the Case Management Statement filed April 7, 2026 includes a proof of service showing that Ada Peters personally served the document on Hayk Mirimanyan on behalf of Defendant on April 7, 2026.)

Defense

counsel Darold M. Shirwo provides his declaration, stating that he is a regular customer of Defendant, an avid car collector, and regularly has one to two cars at Defendant's shop such that he is at the premises at least two to three times a week. (Shirwo Decl., ¶¶4-6.) Mr. Shirwo states that he has spoken to all Defendant's employees (Karlin Khachayryan, Andy "Kepentyan", Alfredo Ortega, and Alex Contreras) who were working on October 13 and 22, 2025, and no one remembers a woman or anyone else delivering legal papers or a sealed envelope

during business hours nor do they remember Mr. Mirimanyan being present at the shop those days. (Id., ¶8.)

In

opposition, Plaintiff argues that Defendant does not deny that Mr. Mirimanyan is Defendant's agent and that Defendant relies on self-serving declarations when a non-party, non-registered adult process server served Defendant.

Plaintiff

provides Ada Peter's declaration, wherein she states that "[o]n or before" October 22, 2025, she personally went to Defendant's business location for the purpose of serving legal documents. (Ada Peter Decl., ¶3.) She states she was instructed by Plaintiff to confirm the identity and take a picture of the person served, she personally observed and spoke with Mr. Mirimanyan, she personally delivered the summons and complaint on Mr. Mirimanyan, and she took a photograph of Mr. Mirimanyan depicting the individual who accepted service on Defendant's behalf. (Id., ¶¶4-9; Ex. A [Photographs].)

In

her corrected declaration, Ada Peter states that there was a typographical error in paragraph 3 of her prior declaration, such that the correct language should be: "On or after October 22, 2025, I personally went to the business location of Purrfect Mechanical Services, Inc., located at or near 4350 Whitsett Avenue, Studio City, California, for the purpose of serving legal documents in this case." (Corrected Ada Peter Decl., ¶3 [underline added].) She states that all other statements in her prior declaration remain true and correct. (Id.)

In

reply, Defendant argues that Plaintiff's evidence is based on perjury and amounts to deceit because Plaintiff's photograph depicts a brown Oldsmobile Tornado on the left side of the photograph, which Defendant circles in its Reply Exhibit 2, showing a car that is owned by Mr. Shirwo that was not located at the premises on October 22, 2025. Mr. Shirwo states that he purchased that car on January 2, 2026 and delivered the vehicle to Defendant between April 5 to April 8, 2026. (Shriwo Reply Decl., ¶¶3-4, Ex. 2 [Circled Photograph]; Kepenyan Decl., ¶¶5-6.) Thus,

Defendant argues that Plaintiff's submitted photograph and Ms. Peter's declaration are acts of perjury.

At

this point, the Court cannot ascertain when the photograph was taken as there is no time stamp and Ada Peter does not state the exact date she took the photograph. However, based on the evidence submitted by

the parties, Mr. Mirimanyan and Mr. Kepenyan state that Mr. Mirimanyan was not on the premises on October 22, 2025 to personally accept service. Furthermore, Defendant has provided a reasonable explanation that the photograph could not have been taken on October 22, 2025 and that it was likely taken on April 7 or 8, 2026 when Ada Peters delivered the Case Management Statement.

The

Court also notes that Ada Peter's original and corrected declarations do not provide a specific date regarding when the summons and complaint were served on Defendant. According to the proof of

service filed on December 22, 2025, service was effectuated on October 22, 2025. Now, Plaintiff claims that Ada

Peter served the documents on a date "on or after" October 22, 2025. The Court cannot ascertain when service was effectuated—whether it was served on October 22, 2025 as stated in the December 22, 2025 proof of service, sometime after October 22, 2025, or sometime in April 2026 after Mr. Shirwo presented his brown vehicle to Defendant's business premises.

Based

on the ambiguities presented in the papers and at the hearing, the Court continued the hearing upon Plaintiff's request for an evidentiary hearing. The Court will make its determination on this motion at the evidentiary hearing.

However,

if the parties have resolved this issue prior to the hearing, the parties should inform the Court and take the motion off-calendar. If neither party appears to the evidentiary hearing, the Court would be inclined to grant the motion to quash service of the summons and complaint based on the record before it. It appears that the parties do not contest that Mr. Mirimanyan is the agent for service of process for Defendant, Mr. Mirimanyan's identity and physical features (as Defendant does not dispute that Mr. Mirimanyan was on the business premises on April 7 or 8 or that he is the person depicted in the photographs), or the business address, such that Plaintiff may re-attempt service on Defendant.

RULING:

In
the event a party requests a signed order or the court in its discretion elects
to sign a formal order, the following form will be either electronically signed
or signed in hard copy and entered into the court's records.

ORDER

Defendant

Purfect Mechanical Services, Inc.'s Motion to Quash Service of the Complaint came
on regularly for hearing on September 11, 2026, with appearances/submissions as
noted in the minute order for said hearing, and the court, being fully advised
in the premises, did then and there rule as follows:

THE COURT WILL MAKE ITS DETERMINATION ON THE MOTION TO QUASH SERVICE
OF THE SUMMONS FOLLOWING THE EVIDENTIARY HEARING ON SEPTEMBER 11, 2026 AT 1:45
P.M.

IF THE PARTIES HAVE RESOLVED THE SERVICE ISSUE PRIOR TO THE
EVIDENTIARY HEARING, THE PARTIES SHOULD INFORM THE COURT AND TAKE the MOTION
OFF-CALENDAR.

IF NEITHER PARTY ATTENDS THE EVIDENTIARY HEARING, THE COURT WOULD BE
INCLINED TO GRANT THE MOTION TO QUASH SERVICE AND PLAINTIFF MAY RE-ATTEMPT
SERVICE ON DEFENDANT.

CASE MANAGEMENT CONFERENCE IS SET FOR OCTOBER 30, 2026 AT 9:00 AM

DEFENDANT TO PROVIDE NOTICE.

IT IS SO ORDERED.